UNITED STATES
NUCLEAR REGULATORY COMMISSION
WASHINGTON, D.C. 20555-0001

March 19, 2026

MEMORANDUM TO: Robert Sun, Chief
Environmental Project Management Branch 2
Division of Rulemaking, Environmental,
and Financial Support
Office of Nuclear Material Safety
and Safeguards

Stephen Koenick, Acting Chief
Environmental Review Technical Branch 1
Division of Rulemaking, Environmental,
and Financial Support
Office of Nuclear Material Safety
and Safeguards

FROM: Diana Diaz-Toro, Project Manager
Environmental Project Management Branch 2
Division of Rulemaking, Environmental,
and Financial Support
Office of Nuclear Material Safety
and Safeguards

Signed by Diaz Toro, Diana
on 03/19/26

SUBJECT: SUMMARY OF JANUARY 14, 2026, MEETING WITH TRIBES REGARDING THE SECTION 106 PROCESS FOR THE LICENSE RENEWAL APPLICATION FOR THE CROW BUTTE URANIUM RECOVERY PROJECT AND MARSLAND EXPANSION AREA IN DAWES COUNTY, NEBRASKA

On January 14, 2026, the U.S. Nuclear Regulatory Commission (NRC) staff held a closed government-to-government virtual Tribal Meeting in support of the National Historic Preservation Act (NHPA) Section 106 process for Crow Butte Resources, Inc.'s (CBR's) license renewal application for uranium recovery operations at the Crow Butte Project and Marsland Expansion Area in Dawes County, Nebraska (the undertaking). The purpose of the meeting was to provide an overview of the undertaking, describe the NHPA Section 106 process for the undertaking, and engage with and hear from Tribes invited to participate in and consult on the Section 106 process for the license renewal application.

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Participating Tribes included the Omaha Tribe of Nebraska, the Ponca Tribe of Nebraska, the Cheyenne River Sioux Tribe, and the Northern Cheyenne Tribe. Representatives from the Nebraska State Historical Society also attended the meetings. The list of attendees is enclosed.

During the meeting, the NRC staff discussed the NRC's mission and Tribal Policy Statement and provided an overview of the license renewal application for the Crow Butte Project and Marsland Expansion Area, including the regulatory history. The NRC staff also described previous cultural resources identification efforts within the areas of potential effect (APEs) for the Crow Butte Project and Marsland Expansion Area and the cultural resources license condition, which addresses unanticipated discoveries and any new developmental activities not previously assessed. Finally, the NRC staff went over the schedule for completing the Section 106 process, National Environmental Policy Act (NEPA) environmental review, safety evaluation review, and the licensing action decision (i.e., July 31, 2026). The NRC staff is coordinating its Section 106 and NEPA reviews. The NRC staff's presentation can be found at NRC's Agencywide Documents Access and Management System, at https://www.nrc.gov/reading-rm/adams.html, using the following accession number ML26054A308.

Tribal representatives asked whether additional cultural resources surveys would be conducted within the APEs, considering CBR's request for a license renewal. The NRC staff explained that the staff is seeking and gathering input as part of its identification efforts consistent with the Section 106 regulations and encouraged Tribes to provide such input. In response to a question regarding tribal involvement in previous cultural resources surveys conducted at both sites and corresponding findings, the NRC staff clarified that archaeological sites and Tribal cultural resources previously identified at the Crow Butte Project were either avoided during construction and operation of the facility or found to not be affected by operation of the facility. CBR also intends to avoid potential direct impacts to Tribal cultural resources previously identified at the Marsland Expansion Area.

Tribal representatives also shared concerns regarding potential impacts to environmental resources like water, land, ecology, and air from uranium recovery activities at the Crow Butte Project site. The NRC staff discussed the requirements and scope of the NRC's regulations for the safe and secure operation of uranium recovery facilities to protect public health and safety. Specifically, the staff's safety review focuses on whether the proposed activities to be carried out during the proposed license renewal term comply with NRC's regulations. The staff also discussed the environmental monitoring program that licensees must implement throughout the life of the facility and the biannual monitoring reports to be submitted to the NRC. The environmental monitoring program monitors air quality, radiation, soil, sediments, surface water, groundwater, vegetation, and livestock. The staff also explained that, after licensing, the NRC's oversight program begins with inspections of the facility throughout the license term.

Tribal representatives asked the NRC staff to share a copy of the staff's presentation with the meeting attendees, which the NRC staff provided on January 15, 2026, via email. In response to a question from a Tribal representative, the NRC staff provided additional information to clarify the difference between CBR's license renewal application, which is for the continued operation of the Crow Butte Project and the construction and operation of the Marsland Expansion Area in Nebraska, and the license renewal application for the Dewey-Burdock uranium recovery project in South Dakota.

The NRC staff encouraged input from Tribes by mid-February 2026 so that the input can inform the staff's requests for additional information to be submitted to CBR.

On March 2, 2026, the NRC staff provided the draft summary of the meeting to the consulting Tribes for review and comment by March 16, 2026 (ML26076A116). The staff did not receive any comments.

Docket No. 40-9075

Enclosures:
As stated

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Dated: March 19, 2026

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List of Attendees

Tribal Information Meeting on the U.S. Nuclear Regulatory Commission's Section 106 Process for the License Renewal Application for the Crow Butte Uranium Recovery Project and Marsland Expansion Area in Dawes County, Nebraska

January 14, 2026

Virtual Meeting

Attendee	Organization
Theresa Foley, Tribal Historic Preservation Officer	Ponca Tribe of Nebraska
Mark Parker, Tribal Historic Preservation Office	Omaha Tribe of Nebraska
Jarell Grant, Tribal Historic Preservation Office	Omaha Tribe of Nebraska
Payton Scott, Counsel	Cheyenne River Sioux Tribe
Teanna Limpy, Tribal Historic Preservation Officer	Northern Cheyenne Tribe
Michael Sothan	Nebraska State Historical Society
Mariska Molnar	Nebraska State Historical Society
Haylee Rose	Nebraska State Historical Society
Ted Smith, Branch Chief	U.S. Nuclear Regulatory Commission
Christine Pineda, Environmental Project Manager	U.S. Nuclear Regulatory Commission
Beau Goldstein, Environmental Project Manager	U.S. Nuclear Regulatory Commission
Diana Diaz-Toro, Environmental Project Manager	U.S. Nuclear Regulatory Commission

Enclosure